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Frank Elderson

Member of the Executive Board

[COURTESY TRANSLATION]

Mr Israel Arroyo Martínez

Secretary of State

State Secretariat for Economy and Business Support

Ministry of Economy, Trade and Business

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Frankfurt am Main, 1 September 2026

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Request for an ECB opinion on a draft law on consumer credit agreements and on the amendment of the consolidated text of the general law for the protection of consumers and users and other supplementary laws

Dear Mr Arroyo Martinez,

Thank you for your letter of 24 July 2026 asking the Banco de España to request an opinion of the European Central Bank (ECB) on a draft law on consumer credit agreements and on the amendment of the consolidated text of the general law for the protection of consumers and users and other supplementary laws (hereinafter the 'draft law').

After careful consideration, the ECB has decided not to adopt an opinion in the present case, as the draft law only touches marginally on the ECB's fields of competence pursuant to Articles 127(4) and 282(5) of the Treaty on the Functioning of the European Union, in conjunction with Article 2(1), third and sixth indents, of Council Decision 98/415/EC¹. In reaching its decision not to adopt an opinion, the ECB took into particular account

¹ Council Decision 98/415/EC of 29 June 1998 on the consultation of the European Central Bank by national authorities regarding draft legislative provisions (OJ L 189, 3.7.1998, p. 42, ELI: <http://data.europa.eu/eli/dec/1998/415/oj>).

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that the draft law implements Directive (EU) 2023/2225 of the European Parliament and of the Council² and Directive 2023/2673 of the European Council and of the European Parliament³ into Spanish law and that the functions that it confers on the Banco de España can be considered as a non-substantial development of functions already attributed to it⁴.

The ECB appreciates that you have sent the draft law to the ECB for consultation and remains confident that the Ministry of Economy, Trade and Business will continue to consult the ECB on future draft legislative provisions that fall within the ECB's fields of competence under the Treaty and Decision 98/415/EC.

Yours sincerely,

[signed]

Cc: Mr José Luis Escrivá, Governor, Banco de España

² Directive (EU) 2023/2225 of the European Parliament and of the Council of 18 October 2023 on credit agreements for consumers and repealing Directive 2008/48/EC (OJ L, 2023/2225, 30.10.2023, ELI: <http://data.europa.eu/eli/dir/2023/2225/oj>).

³ Directive (EU) 2023/2673 of the European Parliament and of the Council of 22 November 2023 amending Directive 2011/83/EU as regards financial services contracts concluded at a distance and repealing Directive 2002/65/EC (OJ L, 2023/2673, 28.11.2023, ELI: <http://data.europa.eu/eli/dir/2023/2673/oj>).

⁴ Within the meaning of Article 2(1), sixth indent, of Decision 98/415/EC.